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MOTION

FOR ORDER PERMITTING PRETRIAL DISCOVERY

The Court tenders the following tentative decision in the matter Dustin Clemons v. Pinkerton Consulting & Investigations Inc., et al., Los Angeles County Superior Court case number 25STCV11123, set for hearing on September 4, 2026. Dustin Clemons (Plaintiff) moves for an order permitting pretrial discovery of the financial condition of Pinkerton Consulting and Logistics, Inc. (Pinkerton), BNSF Railway Co. (BNSF), and Sequoia Consultants, Inc. (Sequoia) (collectively, Defendants). Defendants oppose the motion. The motion is denied.

By default, no pretrial discovery into “(1) The profits the defendant has gained by virtue of the wrongful course of conduct of the nature and type shown by the evidence [or] (2) The financial condition of the defendant” is permitted. (Civ. Code, § 3295.) However, “[u]pon motion by the plaintiff supported by appropriate affidavits . . . the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294.” (Ibid.) To succeed on a punitive damages claim, the plaintiff must prove by clear and convincing evidence that the defendant is guilty of “oppression, fraud, or malice.” (Id., § 3294.)

Before a court may enter an order permitting such discovery, it must “(1) weigh the evidence submitted in favor of and in opposition to motion for discovery, and (2) make a finding that it is very

likely the plaintiff will prevail on his claim for punitive damages.” (Jabro v. Superior Court (2002) 95 Cal.App.4th 754, 758.) Here, Plaintiff relies on prior rulings from the Court as well as submitted evidence to support a finding that it is very likely he will prevail on his punitive damages claim. The Court will address these categories in turn before making a final determination.

First, this Court's prior ruling granting Plaintiff a preliminary injunction has no bearing on the present motion. There, the Court determined that based on the evidence presented, Plaintiff was likely to prevail on his claim for trespass. The Court made no determination as to whether Plaintiff would likely prevail on his claim for punitive damages, and even if it had, a different standard is used with respect to a motion under Civil Code section 3295. Instead, Plaintiff must show that it is very likely he will prevail on his punitive damages claim. Plaintiff must demonstrate that it is very likely he will prove by clear and convincing evidence that Defendants engaged in oppression, fraud, or malice — in obtaining his preliminary injunction, he only showed it to be likely that he would prove by a preponderance of the evidence that Defendants trespassed on his property.

Second, Plaintiff presents video evidence of potentially malicious conduct on the part of Defendants. To find for Plaintiff, in each instance the Court must determine that the evidence presented makes it very likely that Plaintiff will prove malice by clear and convincing evidence. Malicious conduct is “intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) And when asserting a punitive damages claim against an employer based on the acts of an employee, it shall not be liable unless it “had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Id., § 3294, subd. (b).)

With respect to Pinkerton, Plaintiff presents evidence that one of its agents trespassed on Plaintiff's property, broke into a structure there, and destroyed a security camera. Such destructive acts could certainly be found malicious by a jury. However, Plaintiff does not seek

pretrial discovery related to the financial condition of that agent, but rather Pinkerton itself. Plaintiff must then also offer evidence of either advance knowledge by Pinkerton of the agent's unfitness or authorization or ratification of his conduct under section 3294, subdivision (b). Plaintiff's only such evidence is a video of a Pinkerton truck driving by his food stand on the side of a road away from his property on a day after he filed the lawsuit. Plaintiff theorizes that this incident demonstrates intimidation by Pinkerton and a concerted effort by managing agents of the corporation to inflict harm on Plaintiff. But the evidence presented only shows a truck driving along a public road in an area in which Pinkerton operates. Plaintiff has not demonstrated that it is very likely a jury will find this to be clear and convincing evidence of corporate ratification, as required under *Barton v. Alexander Hamilton Life Ins. Co. of America* (2003) 110 Cal.App.4th 1640, 1644. Thus, the Court does not find it very likely that Plaintiff will prevail on his punitive damages claim against Pinkerton and does not order pretrial discovery of its financial condition.

With respect to Sequoia, Plaintiff presents evidence that one of its employees trespassed on his property. Plaintiff also claims that the video evidence shows the employee actively hacking security cameras. However, this is not clear from the video, and thus the Court does not find it very likely that a jury would find this clear and convincing evidence of malice, rather than mere trespass. Even if it did, Plaintiff provides no evidence of corporate ratification by Sequoia. Thus, the Court does not find it very likely that Plaintiff will prevail on his punitive damages claim against Sequoia and does not order pretrial discovery of its financial condition, either.

With respect to BNSF, Plaintiff presents evidence that its employees shined a laser at his house. It is possible a jury may find BNSF liable for such conduct in some regard, but it is not highly likely that it will determine the conduct to be malicious by being particularly injurious or despicable. And even if the jury did make such a finding, Plaintiff has not presented any evidence of ratification with respect to BNSF. Thus, the Court does not find it very likely that Plaintiff will prevail on his punitive damages claim against BNSF and does not order pretrial discovery of its financial condition, either. Accordingly, Plaintiff's motion is denied.

Though the Court denies Plaintiff's motion for pretrial discovery of Defendants' financial condition, the Court expects to discuss at the Final Status Conference the procedure by which evidence of financial

condition will be presented if the jury finds Plaintiff has established a right to recover punitive damages. Because the punitive damages phase, if any, proceeds immediately upon rendering of the jury's verdict, it will be necessary to have evidence of financial condition (typically financial statements) available at that time.

Conclusion:

The Court denies
Plaintiff's motion.